

ATAVIA WEDDINGS

SERVICE AGREEMENT

This Wedding Photography & Videography Service Agreement (the "Agreement") is entered into as of the date signed below, by and between Atavia Weddings (hereinafter the "Company" or "Atavia") and the Client(s) identified below.

PARTIES & CLIENT INFORMATION

Client Name: _____

Mailing Address: _____

City / State / ZIP: _____

Client State of Residence (Governing State): _____

Phone: _____

Email: _____

EVENT DETAILS

Event Date: _____

Estimated Guest Count: _____

Ceremony Venue: _____

Reception Venue: _____

Start Time: _____

End Time: _____

SERVICES & PACKAGE DETAILS

The Heirloom — Eight Hours Combined Collection

- 8 Hours of Coverage
- One Photographer
- One Videographer
- All Images Edited
- Unlimited Locations
- Online Gallery
- Full Ownership Rights
- Engagement Session
- 4K Resolution Video
- Professional Audio
- Highlight Film
- Extended Edit
- Raw Footage
- Digital Delivery
- Lifetime Cloud Storage

INVESTMENT SUMMARY

Total Investment	\$3,500
Retainer Deposit (due at signing)	\$500
Remaining Balance	\$3,000

The \$500 retainer is non-refundable and applied toward the Total Investment. The remaining balance is automatically charged to the payment method on file fourteen (14) days before the Event.

SELECTED PAYMENT OPTION

Standard Plan. A \$500 non-refundable retainer is due at signing; the remaining balance of \$3,000 is automatically charged to the payment method on file fourteen (14) days prior to the Event date. Total Investment: \$3,500.

TERMS & CONDITIONS

1. **Retainer & Booking.** A non-refundable retainer deposit of five hundred dollars (\$500) is due upon execution of this Agreement to reserve the Event date and is applied toward the Total Investment. The remaining balance of \$3,000 is due fourteen (14) days prior to the Event date and will be automatically charged to the Client's payment method on file as set forth in the Payment Authorization & Card on File clause below. Dates are reserved on a first-come, first-served basis.

2. **Payment Authorization & Card on File.** All payments under this Agreement are processed through the Company's secure third-party payment processor. Card information is entered by the Client directly with the processor and is never collected, viewed, or stored by the Company. Upon the Client's first payment, the Client's payment method is securely retained on file by the processor, and the Client authorizes the Company to charge that payment method for amounts due under this Agreement, including the remaining balance (if the Standard Plan is selected), overtime as described in the Overtime & Additional Coverage clause, any gratuity the Client elects to add as described in the Gratuity clause, and any other amounts the Client agrees to in writing. Charges will appear on the Client's statement as Danbren Media LLC, the Company's parent company. This authorization remains in effect until all amounts due under this Agreement are paid; the Client may update the payment method on file by written notice. The Client agrees not to dispute charges made in accordance with this Agreement.

3. **Photography & Videography Services.** The Company shall provide professional wedding photography and videography services as outlined in the Services & Package Details above.

4. **Overtime & Additional Coverage.** Coverage is limited to the number of hours specified in the Services & Package Details above. Should the Client require coverage beyond the contracted hours on the day of the Event, additional time will be billed at a rate of one hundred seventy-five dollars (\$175) per hour, charged in full-hour increments. If additional coverage is arranged and paid for in advance of the Event date, the rate is reduced to one hundred twenty-five dollars (\$125) per hour. Any overtime incurred on the day of the Event is due and payable, and the Company may charge the payment method on file, prior to delivery of the final files.

5. **Creative License & Ownership.** Upon receipt of payment in full, the Company grants the Client full ownership rights to the final edited images delivered under this Agreement, including the right to print, reproduce, and share them for personal use. The Company retains full copyright and ownership of all video content produced under this Agreement, and the Client is granted a personal, non-exclusive license to use the video content for personal, non-commercial purposes. The Company retains a non-exclusive license to use any images or video content for portfolio, marketing, social media, advertising, and promotional purposes unless the Client provides written notice to opt out within thirty (30) days of signing this Agreement.

6. **Cooperation & Scheduling.** The Client agrees to provide a detailed timeline of the wedding day events no later than fourteen (14) days prior to the Event date. The Client agrees to cooperate with reasonable requests from the Company to facilitate photography and videography coverage. The Client understands that the quality of the final product depends in part upon the Client's cooperation, including allowing adequate time for key moments and ensuring access to key locations.

7. **Exclusivity.** The Company shall be the sole and exclusive photography and videography provider for the Event. The Client agrees that no other person or company shall be engaged, hired, or permitted to provide professional photography and videography services at the Event during the Company's coverage period. This provision does not restrict guests from capturing personal, non-professional photographs or video for their own private use. Should another photography and videography provider perform the same function at the Event in breach of this provision, the Client shall be in material breach of this Agreement, the Company shall not be responsible for any resulting interference with or compromise of its coverage, and the Company reserves the right to pursue any and all available legal and equitable remedies.

8. **Safe & Respectful Working Environment.** The Client agrees to provide a safe and respectful working environment for the Company's team. The Company reserves the right to pause, suspend, or cease coverage, without refund, if any member of the team is subjected to conditions that are unsafe, abusive, harassing, or threatening. The Company will make reasonable efforts to resume coverage once such conditions are resolved.

9. **Cancellation & Rescheduling.** The retainer deposit is non-refundable under all circumstances. If the Client cancels more than ninety (90) days prior to the Event date, any amounts paid in excess of the retainer deposit shall be refunded. If the Client cancels

within ninety (90) days of the Event date, fifty percent (50%) of the total balance (excluding the non-refundable retainer) shall be retained by the Company. One complimentary reschedule is permitted if the new date is within twelve (12) months of the original date and is subject to availability.

10. Cancellation by Company. In the unlikely event that the Company must cancel due to illness, emergency, or unforeseen circumstances, the Company will make every effort to secure a qualified replacement photographer and/or videographer. If no suitable replacement can be arranged, the Company shall provide a full refund of all payments received. The Company's liability in such event shall be limited to the return of all funds paid.

11. Limitation of Liability. In the unlikely event of a total loss of image and video files due to equipment failure, memory card failure, or other unforeseen technical issues, the Company's total liability shall be limited to a full refund of all payments made under this Agreement. The Company shall not be held liable for any indirect, incidental, consequential, or special damages.

12. Venue & Third-Party Limitations. The Company shall not be held responsible for limitations or restrictions imposed by venues, officiants, or other vendors, including but not limited to no-flash policies, restricted access to certain areas, poor or insufficient lighting, obstruction or interference by guests or other vendors, or delays and timeline overruns caused by parties other than the Company. The Client acknowledges that such factors may affect the final product and are beyond the Company's reasonable control.

13. Force Majeure. Neither party shall be liable for failure to perform obligations under this Agreement if such failure results from circumstances beyond the reasonable control of the affected party, including but not limited to natural disasters, pandemics, government restrictions, severe weather, venue closures, or acts of God.

14. Delivery. Final edited images shall be delivered via a private online gallery and final video content via digital download or streaming link. It is the Client's sole responsibility to download and back up all files within ninety (90) days of delivery. The Company is not responsible for files beyond the stated delivery period.

15. Engagement Session. This collection includes one (1) complimentary engagement session of up to one (1) hour at one or more mutually agreed locations, to be scheduled at least thirty (30) days prior to the Event date and subject to availability.

16. Social Media & Vendor Tagging. The Client agrees to tag and credit Atavia Weddings on any social media posts featuring images and video content produced by the Company. The Company appreciates but does not require vendor tagging.

17. Meal Provision. For events with coverage exceeding five (5) hours, the Client agrees to provide a meal for each member of the team present at the event.

18. Gratuity. Gratuity is neither required nor expected. Team members do not accept cash gratuities at the Event. If the Client wishes to recognize the team, an optional gratuity in an amount of the Client's choosing may be added through the Company's secure payment system at any time before or within ninety (90) days after the Event, and the Client authorizes such elected gratuity to be charged to the payment method on file. One hundred percent (100%) of gratuities are distributed to the team members who served the Client's Event. Gratuities are voluntary and non-refundable.

19. Travel. No travel fees. The Company maintains dedicated teams positioned in the Client's area for seamless service without added travel costs.

20. Indemnification. The Client agrees to indemnify and hold harmless the Company, its owners, employees, contractors, and agents from and against any and all claims, damages, losses, costs, and expenses (including reasonable attorney's fees) arising out of or related to the Client's breach of this Agreement or the Client's negligence or willful misconduct.

21. Dispute Resolution & Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the state in which the Client resides, as identified in this Agreement (the "Governing State"). Any disputes arising under or in connection with this Agreement shall first be submitted to mediation in the Governing State. If mediation is unsuccessful, the dispute shall be resolved through binding arbitration in accordance with the rules of the American Arbitration Association.

22. Entire Agreement. This Agreement constitutes the entire understanding between the parties and supersedes all prior negotiations, representations, warranties, commitments, offers, and agreements, whether written or oral. This Agreement may only be amended or modified by a written instrument signed by both parties.

23. Severability. If any provision of this Agreement is found to be invalid, illegal, or unenforceable, the remaining provisions shall continue in full force and effect.

ACKNOWLEDGMENT & SIGNATURES

By signing below, the Client acknowledges that they have read, understand, and agree to all terms and conditions set forth in this Agreement. The Client further acknowledges that the retainer deposit is non-refundable and that this Agreement is legally binding.

CLIENT

Client Signature: _____ Date: _____
Printed Name: _____ Phone Number: _____
Email Address: _____

ATAVIA WEDDINGS

Authorized Signature: _____ Date: _____
Printed Name / Title: Elizabeth Scott, Manager _____